

5. 9:00 AM CASE NUMBER: C23-01537

CASE NAME: KATHERINE HART VS. DAVID SMITH

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MATHEW RUSSELL, ESQ.**

FILED BY: HART, KATHERINE

TENTATIVE RULING:

Based upon the breakdown in communication in the attorney-client relationship the court grants counsel's request to be relieved. The order is effective upon the filing of the proof of service of the signed order upon the client.

6. 9:00 AM CASE NUMBER: C24-02275

CASE NAME: DIDAR SINGH VS. KULVINDER SINGH PANNU

***HEARING ON MOTION IN RE: REINSTATE TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION**

FILED BY: SINGH, DIDAR

TENTATIVE RULING:

Before the Court is Plaintiff Didar Singh's Motion to Reinstate Temporary Restraining Order and Preliminary Injunction.

Defendants' Request for Judicial Notice is granted. (Cal. Evid. Code § 452 (d).) While the RJN indicated that the documents sought to be noticed were attached, no documents were actually attached to the filed version of the RJN. As the documents were all filings in this matter, the Court had access to them. Counsel should ensure all documents are properly filed.

Factual and Procedural Background

On August 22, 2024, Defendant Kulvinder Singh Pannu obtained a Temporary Restraining Order against Plaintiff Didar Singh preventing Plaintiff from contacting him or going to the Sikh Center of the San Francisco Bay Area, El Sobrante Gurdwara Sahib ("Sikh Center") – case number N24-1525.

Plaintiff filed his complaint in the instant matter on August 27, 2024, alleging five causes of action: (1) violation of civil and religious rights; (2) defamation; (3) intentional infliction of emotional distress; (4) breach of fiduciary duty; and (5) declaratory relief.

On September 9, 2024, Plaintiff appeared *ex parte* seeking a temporary restraining order ("TRO") and an order to show cause regarding a preliminary injunction restraining Defendants from prohibiting or interfering with Plaintiff's access to the Sikh Center and related actions by Defendants. The Court granted the TRO and scheduled a hearing relating to the preliminary injunction.

On September 13, 2024, Defendants appeared *ex parte* seeking an order vacating the TRO. The Court granted the *ex parte* application, dissolving the TRO issued on September 9 "immediately." Thereafter, the parties briefed the issues related to the preliminary injunction. On October 25, 2024, the Court issued its Order: "The OSC re Preliminary Injunction is discharged and deemed moot. The temporary restraining order was vacated on 9/13/24."

On February 7, 2025, the civil restraining order issued in the 1525 matter was vacated. Four months later, on June 9, 2025, Plaintiff filed the instant motion to "reinstate" the TRO originally issued in this

matter and vacated four days later.

Initial Considerations

“[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

Plaintiff’s counsel’s declaration in support of his Motion attaches four separate exhibits but fails to include bookmarks. Counsel is reminded to comply with the Rules of Court going forward.

Analysis

Plaintiff indicates that he is seeking “reinstatement of the Temporary Restraining Order and Preliminary Injunction.” The Court notes that a Preliminary Injunction was never issued in this matter. Instead, a TRO was granted on September 9 and dissolved on September 13, 2024. On October 25, 2024, the Court discharged the OSC regarding the preliminary injunction. In other words, a preliminary injunction was never entered. As such, it appears that Plaintiff’s motion to ‘reinstate’ is limited to attempting to ‘reinstate’ the TRO – which was dissolved in response to Defendant’s *ex parte* application on September 13, 2024.

Plaintiff brings his motion under California Code of Civil Procedure section 533, which states:

In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.

Section 533 is clear that under that statute a court may “modify or dissolve an injunction or temporary restraining order” upon a proper showing. The statute only gives the Court the authority to modify or dissolve an existing TRO or injunction. There is no indication that the Court may ‘reinstate’ a TRO which was dissolved over one year prior.

Instead, it appears that Plaintiff is seeking to have a new TRO or preliminary injunction entered. In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.) “A plaintiff seeking a preliminary injunction bears the burden of **presenting facts** which show a reasonable probability that he will succeed on the merits.” (*Citizens for Better Streets v. Board of Supervisors* (2004) 117 Cal.App.4th 1, 6, emphasis added.) “To obtain a preliminary injunction, Plaintiff bears the burden of showing that he has a reasonable probability of prevailing on the merits of his claims, that it has no adequate legal remedy, and that he will suffer irreparable injury if the requested

injunctive relief does not issue.”

Plaintiff presents no evidence to support his motion. For example, there is no declaration from Plaintiff explaining how he will suffer irreparable injury if an injunction does not issue. As noted by Defendants, there “are no new declarations, no new factual allegations, no evidence of recent threats, and no indication that any Defendant has acted improperly since the original TRO was dissolved.” (Opp. at 5:8-9.) There is no declaration from Plaintiff at all. Instead, there is a declaration from Plaintiff’s counsel which merely attaches copies of prior court filings and orders.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if statements in the points and authorities could be considered evidence, “the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmty. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

While Plaintiff did file a declaration in support of the original *ex parte* application in September 2024, Plaintiff does not even reference that document as support for the current motion. Even if he had, the Court would not consider it given that over one year has passed since that time. Plaintiff would need to provide a current declaration explaining his position as of the time of the filing of the instant motion.

In the opposition papers, Defendants set forth several legal arguments showing that Plaintiff is not likely to prevail on the merits – thereby undermining any request for a TRO. Plaintiff’s reply, which is optional, was due on or before Friday, December 12. (Cal. Code Civ. Proc. § 1005.) No reply was filed by that date, and no reply has been filed as of the drafting of this tentative ruling.

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to respond to Defendant’s arguments, Plaintiff concedes the contentions and arguments in the opposition papers.

Conclusion

Plaintiff’s Motion is **denied**.

7. 9:00 AM CASE NUMBER: C24-03015

CASE NAME: ALY SY VS. ZUBAIR ALI

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST CROSS-COMPLAINANT
FILED BY:**

TENTATIVE RULING:

The unopposed motion for leave to file a Cross-Complaint for indemnity and contribution against